

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

- 1. The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

5. 9:00 AM CASE NUMBER: L25-03679

CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED ANSWER AND TO ADD X-COMPLAINT; MPA; DEC OF T. GARDNER**

FILED BY:

TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Leave to File First Amended Answer and to add Cross-Complaint on November 12, 2025 (the "Motion for Leave to File"). The Motion for Leave to File was set for hearing on December 30, 2025.

Background

Plaintiff Bank of America, N.A. ("Plaintiff") filed its Complaint on April 4, 2025 (the "Complaint"). The Complaint alleges a breach of contract cause of action, contending that Defendant failed to pay an amount due and owing on a credit card account with Plaintiff. See Complaint filed April 4, 2025, pp. 1-2 and Attachment BC-1 through BC-4.

An Answer was filed by Defendant on June 4, 2025 (the "Answer"). The Answer pleads various defenses, including an asserted violation of "the Fair Debt Collection Practices Act ("FDCPA") and Rosenthal Fair Debt Collection Practices Act ("RFDCPA)." See Answer, p. 1, *et seq.*

Defendant seeks leave to file a cross-complaint to assert affirmative claims for the violation of those statutes. See Motion for Leave to File, Memorandum of Points and Authorities, p. 4; see also Declaration of Tenisha M Gardner (the "Supporting Declaration"), ¶1 *et seq.*

Plaintiff filed an opposition brief. See Opposition to Defendant's Motion for Leave of Court to File Amended Answer and to Add Cross-Complaint filed December 16, 2025 (the "Opposition").

Analysis

1. Service of the Motion Papers

As an initial matter, Plaintiff contends that Defendant failed to properly serve the Motion for Leave to File because she served her court papers herself. See Opposition, p. 2.

Plaintiff fails to cite any supporting evidence for this contention and, indeed, appears to materially misrepresent the record on this motion. Plaintiff's motion states "Defendant continues to serve documents, including this motion, by herself." See Opposition, p. 2.

Defendant's Proof of Service indicates that the Motion for Leave to File was served by a person named Arelious Jones, not Defendant herself. See Proof of Service filed November 19, 2025.

The Court rejects Plaintiff's contention and admonishes Plaintiff for presenting this frivolous argument without any good faith evidentiary support.

2. Leave to File Cross-Complaint

At any time during the course of a pending action, a court has authority to permit defendant to file or amend a cross-complaint. Code Civ. Proc. § 426.50; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Weil & Brown"), § 6:518. A court shall grant leave as long as defendant is acting in good faith. See Weil & Brown, § 6:518 (and authorities cited therein). A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. *Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith. *Id.*

Defendant's evidence reflects Defendant is acting in good faith. She describes that she came learn that the affirmative claims that she tried to state by way of an answer needed to be pled in a separate cross-complaint. Supporting Declaration, ¶13. Defendant also notes that trial has not been set as yet. *Id.* at ¶14.

While Plaintiff takes issue with whether Defendant can state valid causes of action, the Court concludes that there are other procedural mechanisms available to Plaintiff, such as a demurrer, by which Plaintiff can raise such issues. The Court does not conclude that the requested leave to file a cross-complaint is in bad faith.

Accordingly, the Court finds that Defendant's request to file a belated cross-complaint is made in good faith and the Court hereby grants leave, as set forth further below.

3. Leave to Amend Answer

The court has discretion "upon any terms as may be just" to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 ("*Hong Sang Market, Inc.*"); see also Weil & Brown, § 6:610. Leave to amend a pleading, including an answer, is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

Having considered all of the evidence before the Court and the parties' arguments and in the exercise of its discretion, the Court grants leave, as set forth further below, to Defendant to amend her answer.

Disposition

The Court further finds and orders as follows:

1. Defendant's Motion for Leave to File is GRANTED.
2. Defendant is granted leave to file a cross-complaint herein. Such cross-complaint shall be filed and served **within ten (10) days of notice of entry of this order**.
3. Defendant is granted leave to file an amended answer herein. Such amended answer

shall be filed and served **within ten (10) days of notice of entry of this order.**

6. 9:00 AM CASE NUMBER: L25-04765

CASE NAME: ANA RODRIGUEZ VS. WATERS LAUNDRIES, INC.

*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 BY
PLTFS ON 9-30-25

FILED BY: RODRIGUEZ, ANA

TENTATIVE RULING:

Plaintiffs Ana Rodriguez and Maily Johana De Leon Rabanales (“Plaintiffs”) filed a Motion to Enforce Settlement Agreement on September 30, 2025 (“Motion to Enforce Settlement Agreement”). The Motion to Enforce Settlement Agreement was set for hearing on December 30, 2025.

Background

Plaintiffs and defendant _ (“Defendant”) entered into that certain Confidential Mutual Release Agreement dated November 26, 2024 (the “Settlement Agreement”). See Declaration of Emily G. Horrigan filed September 30, 2025 (the “Supporting Declaration”), ¶2; see also Settlement Agreement attached as **Exhibit 1** to Plaintiffs’ Notice of Lodgment filed October 9, 2025.

The Settlement Agreement provides for a settlement payment of \$15,000 (the “Settlement Payment”) by a certain date:

2. Settlement Payment. Claimants shall be entitled to the following consideration from Respondent for the promises and agreements set forth herein. By August 11, 2024, and upon delivery of W-9 forms from Claimants and Claimants’ counsel, Respondent will pay Claimants a total settlement amount of Fifteen Thousand Dollars (\$15,000.00) (the “Settlement Payment”). The Settlement Payment will be delivered to the offices of Claimants’ counsel at 1801 Century Park East, Suite 850, Los Angeles, CA 90067 and allocated as follows:

Settlement Agreement, ¶2.

The numbers do not add up and are riddled with errors. Although the Settlement Agreement specifies a \$15,000 Settlement Payment, the Supporting Declaration appears to erroneously refer to a \$10,000 payment. See Supporting Declaration, ¶2.

12 Fees and Costs, Totaling \$11,736.50. The Settlement Agreement provides payment of
13 \$10,000.00 to settle Plaintiffs’ individual claims, paid by August 11, 2024, and upon delivery of
14 W-9 forms. Because the Settlement Agreement was not fully executed until November 26, 2024,

Plaintiffs’ papers contend that “Defendant owes \$10,000.00 to Plaintiffs, including attorneys’ fees **and costs.**” See MPA, p. 7, Ins. 26-27 (emphasis added). Yet, confusingly, the motion papers also refer to the \$15,000 settlement amount in other places. See e.g. MPA, p. 6. Moreover, by Plaintiffs’ own stated figures, the \$10,000 stated in the MPA does not include costs if the total were actually \$11,736.50 as stated later in the papers (see below).

Plaintiffs’ papers later state that Defendant owes “\$6,000.00 principle [sic] contractual payment